

Clause 6.14 instalments — representation directed, recovery stayed

Allahabad High Court · Division Bench · 25 September 2014 · WRIT - C No. 52348 of 2014 · **Writ disposed; Clause 6.14 representation; recovery stayed**

HEADNOTE

A consumer challenging recovery of electricity dues, and offering to pay in instalments, was relegated to a representation under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The competent authority was to decide it in accordance with law; recovery was kept in abeyance until that decision. The demand was not quashed on merits.

FACTUAL SUMMARY

The petitioner, an ice and cold-storage company, challenged a demand and recovery notice dated 14 February 2014 for Rs 3,58,673 towards consumption of electrical energy plus Rs 35,867 as 10% collection charges. It offered to deposit the entire amount in instalments. Counsel for U.P. Power Corporation Ltd. stated that Clause 6.14 of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer, D.G.M. and General Manager to extend an instalment facility to a consumer in financial distress.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for financial distress

HOLDING

Without deciding the demand, the Court disposed of the writ with liberty to the consumer to apply under Clause 6.14 of the U.P. Electricity Supply Code, 2005 (Executive Engineer, D.G.M. and General Manager being empowered to grant instalments in financial distress) within three weeks; the authority was to decide the representation in accordance with law, preferably within one month; recovery was to remain in abeyance until that decision. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer challenging recovery of electricity dues, and offering to pay in instalments, was relegated to a representation under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The competent authority was to decide it in accordance with law; recovery was kept in abeyance until that decision.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND/RECOVERY DATED 14.2.2014

The writ was not decided on the merits of the dues or collection charges. ¶ 1

NOT DECIDED — ENTITLEMENT TO INSTALMENTS UNDER CLAUSE 6.14

Left to the competent authority on the consumer's representation. ¶ 1